GALWAY COMMUNITY COLLEGE

SUSPENSION AND EXPULSION POLICY

ADOPTED COPY

THIS POLICY HAS BEEN PREPARED IN ACCORDANCE WITH THE GUIDELINES PRODUCED BY THE NATIONAL EDUCATION WELFARE BOARD AS PER THE EDUCATION (WELFARE) ACT 2000 SECTION 23.

THIS POLICY HAS BEEN PREPARED IN CONSULTATION WITH PARENTS, STUDENTS, STAFF, BOARD OF MANAGEMENT AND GALWAY ROSCOMMON EDUCATION AND TRAINING BOARD (GRETB).

Adopted by the Board of Management: 27th September 2018

Adopted by GRETB: 10th October 2018

Aim

Galway Community College strives to provide a safe secure environment conducive to learning and the development of each student. The Code of Behaviour is based on respect for oneself, for others and for our environment. Galway Community College is committed to promoting healthy human relationships and learning environments that are physically safe and psychologically safe for all members of the school community.

Rationale

The *Education (Welfare) Act 2000* sets out certain matters that must be included in a code of behaviour. Section 23(2) of the *Education (Welfare) Act 2000* says: *A code of behaviour shall specify the procedures to be followed before a student may be suspended or expelled from the school concerned and the grounds for removing a suspension imposed in relation to a student.*

- Both the teachers and students of Galway Community College have the right to a safe and productive classroom environment.
- Discipline is an essential element in the classroom and school environment. Any behaviour which threatens the physical or the mental well being of any member of the school community will not be tolerated.
- The Code of Behaviour and school rules set out clearly what is deemed to be acceptable and unacceptable behaviour within the school.
- The Suspension and Expulsion Policy aims to set out the actions to be taken where high level incidents of indiscipline occur and where school rules are not adhered to.
- Galway Community College strives, within the resources of the school, to put all support systems e.g. Counselling / School Completion Program / Referral Centre, in place to allow students to maximise their potential and be effective learners.
- Expulsion will be considered as a final resort.

Definition

Suspension is defined as "Requiring the student to absent himself/herself from the school for a specified, limited period of school days".

Authority to Suspend

Galway Roscommon Education and Training Board holds the authority to suspend or expel a student. This authority has been devolved by GRETB to the Board of Management of the school. The Board has delegated the responsibility to suspend a student to the Principal to the limits of the following as extracted from the Schools Code of Behaviour 2017 pg 10.

> The Board of Management has devolved responsibility to the Principal to suspend a student for up to three days or up to five days for serious breaches of the Code of Behaviour. A sub-committee of the Board can suspend for a further length of time would the need arise if a full Board meeting cannot be called. This responsibility has been delegated to the Chairperson and two other members.

The Principal can make a recommendation to permanently exclude a student but the Board of Management holds this authority as devolved by GRETB.

Grounds for Suspension

Suspension will be used as a proportionate response to the behaviour that is causing concern. Normally, other interventions will have been tried before suspension, and school staff will have reviewed the reasons why these have not worked. The decision to suspend a student requires serious grounds such as that:

- The student's behaviour has had a seriously detrimental effect on the education of other students
- The student's continued presence in the school at this time constitutes a threat to safety
- The student is responsible for serious damage to property

A single incident of serious misconduct may be grounds for suspension.

Determining the appropriateness of suspending a student

A number of factors will be considered before suspending a student:

1. The nature and seriousness of the behaviour
2. The context of the behaviour
3. The impact of the behaviour
4. The interventions tried to date
5. Whether suspension is a proportionate response
6. The possible impact of suspension

In order for suspension to be effective the purpose of the suspension must be clearly identified to the students and his/her parents/guardians.

The grounds for expulsion may be similar to the grounds for suspension. In addition to factors such as the degree of seriousness and the persistence of the behaviour, a key difference is that, where expulsion is considered, the school may have tried a series of other interventions, and believe they have exhausted all possibilities for changing the student's behaviour. **However as mentioned in the Code of Behaviour 2017 some of the steps will be abridged for very serious incidents of misbehaviour.** Internal suspension within the school may also be used as a means of sanction for persistent breaches of the Code of Behaviour. (See Appendix 3 of the Code of Behaviour for Galway Community College Behaviour Stages)

Serious or persistent breaches of the school Code of Behaviour which can result in suspension and/or expulsion include:

- Serious or persistent disruption of teaching and learning.
- The use of obscene, offensive or abusive language in word or writing in the school or towards any person.

- Theft of, vandalism or damage to, school property or the personal property of others.
- Persistent bullying of another student or staff member. (In the event that a student does not engage with the anti-bullying policy and the anti-bullying team the matter becomes a discipline issue and suspension or expulsion may be considered in serious circumstances).
- Unauthorised use of fire doors, alarms or health and safety equipment.
- Persistent failure to wear the school uniform.
- Failure to have report cards signed by each teacher.
- Interference with the personal lives of teachers at home or outside the school.

In all cases of verbal or physical aggression towards a staff member or another student a suspension is applied. (The type of suspension is at the discretion of the Principal or Deputy Principal).

The school authorities deem the incidents below as very serious breaches of the Code of Behaviour and will warrant all steps to be abridged. <u>These include:</u>

- Selling alcohol, drugs or related substances (unprescribed medication or legal drug substitutes for illegal drugs).
- In possession of alcohol, drugs or related substances for supply.
- Acts of physical violence towards students or staff members.
- Acts of sexual harassment towards students or staff members.
- Any act which endangers the Health and Safety and Welfare of themselves or others in the school.
- Theft of, vandalism or damage to, school property or the personal property of others.

It is not possible to list all serious offences and the above list is used as a guide for the school management as an indication of the seriousness of the offences that may warrant suspension/expulsion.

Forms of Suspension

Immediate Suspension:

The Principal may consider an immediate suspension to be necessary where the presence of the student in the school at the time would represent a serious threat to the safety of student or staff of the school, or any other person. Fair procedures will be applied.

Suspension during a State Examination:

This sanction should normally be approved by the Board of Management and should only be used where there is:

- A threat to good order in the conduct of the examination
- A threat to the safety of other students and personnel
- A threat to the right of other students to do their examination in a calm atmosphere

This sanction will only be used as a proportionate response to the student's behaviour. Fair procedures will be applied.

"Automatic Suspension"

A Board of Management may decide, as part of the school's policy on sanctions, and following the consultation process with the Principal, parents, teachers and students, that particular named behaviours incur suspension as a sanction.

However, a general decision to impose suspension for named behaviours does not remove the duty to follow due process and fair procedures in each case.

Procedures in respect of suspension

In all cases of suspension this is a decision of the Principal having heard all sides and considered the case. Parents will be notified in advance of the suspension. A report on all suspensions imposed will be made to the Board of Management.

1) Immediate Suspension

Where an immediate suspension is considered by the Principal to be warranted, a preliminary investigation will be conducted to establish the case for the imposition of the suspension. The formal investigation will immediately follow the imposition of the suspension. Parents will be notified, and arrangements made with them for the student to be collected / brought home. The school will have regard to its duty of care for the student. Parents will be notified before a student is sent home from school, the student will remain in the school until contact can be made. A note explaining the reason for suspension will be sent home with the student and also posted out to parents/guardians.

2) Suspension

Where a preliminary assessment of the facts confirms serious misbehaviour that could warrant suspension, the school will inform the student and his parents about the situation, how it will be investigated and that it could result in suspension. Parents will be informed by phone and/or in writing. Both parents and student will be given an opportunity to respond before a decision is made and before any sanction is imposed.

A meeting with the student and his parents will be offered to give them an opportunity to give their side of the story. If a student and their parents fail to attend, the Principal will contact them advising of the gravity of the matter, the importance of attending a re-scheduled meeting and, failing that, the duty of the school authorities to make a decision to respond to the negative behaviour.

A sub-committee of the board may also meet to discuss with a student and their Parent/Guardian the student's behaviour in the school. This meeting is to facilitate where possible an agreed level of behaviour. This responsibility has been delegated to the Chairperson and two other members. Where possible the Education Welfare Officer will also be invited to such a meeting. Where a student has been suspended for an incident of serious misbehaviour he/she may be asked to sign a contract of acceptable behaviour upon their return to school.

3) Expulsion

The Board of Management decides on a recommendation from the Principal to expel a student following a hearing at which the Principal gives the reasons for his recommendation and the Parents/Guardians of the student may give reasons why the recommendation should not be approved.

In all cases of expulsion the Principal's recommendation to expel a student is subject to the decision of the Board of Management.

The period of suspension

The Board of Management has devolved responsibility to the Principal to suspend a student for up to three days or up to five days for serious breaches of the Code of Behaviour. A sub-committee of the Board can suspend for a further length of time would the need arise if a full Board meeting cannot be called. This responsibility has been delegated to the Chairperson and two other members.

The Board of Management decides on a recommendation from the Principal to expel a student following a hearing at which the Principal gives the reasons for his recommendation and the Parents/Guardians of the student may give reasons why the recommendation should not be approved.

A student should not be suspended for more than three days, except in exceptional circumstances where the Principal considers that a period of suspension longer than three days is needed in order to achieve a particular objective. The Board of Management has authorised the Principal to suspend for up to five days in exceptional circumstances. Where a student is brought by the Principal before the Board of Management the Board will normally place a ceiling of ten days on any one period of suspension imposed by it.

The Board will formally review any proposal to suspend a student, where the suspension would bring the number of days for which the student has been suspended in the current school year to twenty days or more.

Appeals

Any such suspension is subject to appeal under section 29 of the Education Act 1998 (see Appeals).

In all cases involving suspension by the Principal, the Parents/Guardians have the right of appeal to the Board of Management within 42 days of receiving notification.

In all cases involving cumulative suspensions of twenty days, the Parents/Guardians have the right of appeal to the Board of Management within 42 days of receiving notification, thereafter to GRETB and thereafter to the Secretary General of the Department of Education and Science under Section 29 of the Education Act (1998). In all cases involving expulsion, the Parents/Guardians have the right of appeal to GRETB and thereafter to the Secretary General of the Department of Education and Science under Section 29 of the Education Act (1998).

The Education Welfare Service are notified where the cumulative number of days for suspension reaches six or when a student is expelled from school or refused enrolment or where there are education welfare concerns. The contact details of the local office are Unit 19, Sandyfort Business Centre, Grealishtown, Bohermore, Galway. Tel. 091 385302 and Fax 091 670915.

Implementing the Suspension

Written notification

The Principal will notify the parents and the student in writing of the decision to suspend. The letter will confirm:

- The period of the suspension and the dates on which the suspension will begin and end
- The reason for the suspension
- The arrangements for returning to school, including any commitments to be entered into by the student and the parents / length of time for attendance in Referral Centre (Junior Students)
- The provision for an appeal to the Board of Management
- The provision for an appeal to GRETB if applicable
- The right to appeal to the Secretary General of the Department of Education and Science (Education Act 1998 section 29) if applicable.

Grounds for removing a suspension

A suspension may be removed if the Board of Management decides to remove the suspension for any reason or if the Secretary General of the Department of Education and Science directs that it be removed following an appeal under section 29 of the Education Act 1998.

After the Suspension ends

A period of suspension will end on the date given in the letter of notification to the parents with regard to the suspension. Where a student has been suspended for an incident of serious misbehaviour he/she may be asked to sign a contract of acceptable behaviour upon their return to school.

Reintegrating the student

Senior Students: (TY to PLC)

Once a suspension has been completed students meet with the Deputy Principal and/or Principal. During this meeting the Principal / Deputy Principal will explain to the student what behaviour is expected of the student and they will be reminded of the School Rules and Code of Discipline.

Junior Students: (1st to 3rd Years)

Once a suspension has been completed the student returns to school with their parents/guardian, who sign them back into school. They meet with the Director of the Referral Centre and/or Principal. During this meeting the Director of the Referral Centre will explain to the student how the Referral Centre works, that it is behaviour based and what is expected of the student during this time.

Once students have completed their suspension (1-3 days) they must attend the Referral Centre.

- After first suspension the student must attend the Referral Centre for 3 days
- After second suspension the student must attend the Referral Centre for 1 week
- After third suspension the student must attend the Referral Centre for 2 weeks

Fresh Start

After a suspension is completed students are expected to return into the school community and act in accordance with the School Rules and Code of Discipline. Students will be given support and the opportunity for a fresh start.

Records and Reports

Records of investigation and decision-making

Formal written records of the following are kept:

- The investigation (including notes of all interviews held)
- The decision-making process
- The decision and the rationale for the decision
- The duration of the suspension and any conditions attached to the suspension.

Report to the Board of Management

The Principal reports all suspensions to the Board of Management.

Report to TUSLA

The Principal reports suspensions in accordance with the Education Welfare Service reporting guidelines [Education (Welfare) Act, 2000, section 21, Subsection 4(a)]

Review of Use of Suspension

The Board of Management should review the use of suspension in the school at regular intervals to ensure that its use is consistent with school policies, that patterns of use are examined to identify factors that may be influencing behaviour in the school and to ensure that use of suspension is appropriate and effective.